IN THE NATIONAL COMPANY LAW TRIBUNAL,

NEW DELHI BENCH

COURT-IV

NEW DELHI

Company Petition (CAA) No. 109 (ND) of 2021

Under Sections 230-232 & 66 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016

IN THE MATTER OF SCHEME OF AMALGAMATION:

AMONGST

CELESTE MERCHANDISE LIMITED

... Petitioner No.1/Transferor Company

AND

DAY ANIDHI NIRMAN PRIVATE LIMITED

... Petitioner No.2/ Transferor Company

AND

DURGESH ABASAN PRIVATE LIMITED

... Petitioner No.3/ Transferor Company

AND

PRABHU DHAN TRAVELS PRIVATE LIMITED

... Petitioner No.4/ Transferor Company

AND

RATHY ATRA DISTRIBUTOR PRIVATE LIMITED

... Petitioner No.5/ Transferor Company

WITH

RAGHUNATH HOLDINGS AND FINLEASE PRIVATE LIMITED

... Petitioner No.6/ Transferee Company

AND

THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS

Order Delivered on: 17.12.2021

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DR. P.S.N. PRASAD, MEMBER (J)

SHRI RAHUL BHATNAGAR, MEMBER (T)

ORDER

PER DR. P.S.N. PRASAD, MEMBER (T)

1. This Company Petition jointly filed by the Petitioner Companies is coming before us for admission, fixing a date for hearing and final disposal of the Application as well as for a direction for publication to be effected and issuance of notices to the concerned authorities for objections, if any, to the Composite Scheme of Amalgamation (hereinafter, referred to as the **"SCHEME"** contemplated between the Applicants.
2. As per the averments, the Registered offices of all the Petitioner Companies are located in Delhi and hence, falling within the territorial jurisdiction of this Bench.
3. From the case records, it is seen that the First Motion seeking direction for dispensing the meeting of Equity Shareholders, Secured Creditors and Unsecured Creditors was filed before this Tribunal in C.A.(CAA)-77/ND/2021under Sections 230-232 of the Companies Act, 2013 and vide Order dated 28.10.2021 directions were issued by this Tribunal to dispense with the meetings of the Equity Shareholders, Secured and Unsecured Creditors of the Applicant Companies.
4. Now, this petition on second motion is coming up before us for fixing a date of hearing as well as other consequential directions in terms

of provisions of Sections 230 to 232 of Companies Act, 2013 read with Rule 16 of the Companies (Compromise, Arrangements and Amalgamation) Rules, 2016 brought into effect on and from 15.12.2016, it is now hereby ordered as follows:-

(i) The date of hearing of the Joint Petition filed by the Petitioners for the approval of the Scheme is fixed on 11.02.2022.

(ii) Notice of the hearing shall be advertised in the newspapers namely, The "Business Standard" (English, Delhi edition) and "Business Standard" (Hindi, Delhi edition) not less than 10 days before the aforesaid date fixed for hearing.

(iii) In addition to the above public notice, each of the Petitioners shall serve the notice of the Petition on the following Authorities namely, (a) Central Government through Regional Director (Northern Region), Ministry of Corporate Affairs (b) Registrar of Companies, NCT of Delhi & Haryana, Ministry of Corporate Affairs **(c)** the Income Tax Department, and to such other Sectoral Regulatory Authorities who may govern the working of the respective companies involved in the Scheme atleast 30 days before the date fixed for hearing of the above Petition.

(iv) Further, notice shall also be served to Objector(s) or to their representative as contemplated under Sub-Section(4) of Section 230 of the Act who may have made representation and who have desired to be heard in their representation along with a copy of the Petition

and the Annexures filed therewith atleast 15 days before the date fixed for hearing.

(v) Both the Petitioners shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator as well as to Objectors, if any.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on 11.02.2022 for the consideration of the approval of the Scheme of Arrangement as contemplated between the Petitioner Companies.

and the Annexures filed therewith atleast 15 days before the date fixed for hearing.

(v) Both the Petitioners shall atleast 7 days before the date of hearing of the Petition file an affidavit of service in relation to paper publication effected as well as service of notices on the Authorities specified above including the Sectoral Regulator as well as to Objectors, if any.

(vi) Objections, if any, to the Scheme contemplated by the authorities to whom notice has been given on or before the date of hearing fixed herein may be filed, failing which it will be considered that there is no objection to the approval of the Scheme on the part of the authorities by this Tribunal and subject to other condition being satisfied as may be applicable under the Companies Act, 2013 and relevant rules framed thereunder.

(vii) The Petitioner Companies shall individually comply with proviso to sub section (3) of Section 232 or proviso to sub section (7) of Section 230, as may be applicable under the circumstances on or before the date fixed for hearing by filing the certificate of Company's auditor.

(viii) The next date of hearing of the Petition shall be on 11.02.2022 for the consideration of the approval of the Scheme of Arrangement as contemplated between the Petitioner Companies.

-Sd-

(RAHUL BHATNAGAR)
MEMBER (TECHNICAL)

-Sd-

(P.S.N. PRASAD)
MEMBER (JUDICIAL)